Sample Non-Disclosure Agreement

Synthetic legal test document - not legal advice.

1. Purpose and Confidential Information

This sample non-disclosure agreement is synthetic and intended for software testing only.

The parties may exchange confidential information for evaluating a potential technology partnership.

Confidential Information includes source code, architecture diagrams, pricing information, customer data, business plans, product roadmaps, and non-public security information.

2. Obligations of the Receiving Party

The Receiving Party shall use Confidential Information only for the stated evaluation purpose.

The Receiving Party shall protect Confidential Information using at least reasonable security measures and shall restrict access to personnel with a legitimate need to know.

The Receiving Party shall not disclose Confidential Information to third parties except approved professional advisers who are bound by confidentiality obligations.

3. Exclusions and Required Disclosure

Information is not Confidential Information if it was already lawfully known to the Receiving Party without a confidentiality obligation, becomes public without breach, or is independently developed without use of the disclosing party's Confidential Information.

If disclosure is required by law or court order, the Receiving Party may disclose the minimum required information and, where legally permitted, shall provide prompt notice to the Disclosing Party.

4. Duration, Return and Destruction

The confidentiality obligations apply during the evaluation and continue for five years after the last disclosure of Confidential Information.

Trade secrets shall remain protected for so long as they qualify as trade secrets under applicable law.

Upon written request, the Receiving Party shall return or securely destroy Confidential Information, except for archival copies retained under ordinary backup procedures.

5. Remedies and General Terms

The parties acknowledge that unauthorized disclosure may cause harm that is difficult to quantify. The Disclosing Party may seek remedies available under applicable law.

This agreement does not create a partnership, employment relationship, or obligation to complete a transaction.

No exclusive license to intellectual property is granted by this agreement.

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